

Shlok Sangam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 March 2021 · WRIT - C No. - 7166 of 2021 · **Writ dismissed; petitioner relegated to a section 127 appeal against the Executive Engineer's computation of theft-assessment dues.**

HEADNOTE

A consumer's challenge that the Executive Engineer, while granting three instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005, inflated the total theft-assessment dues is a factual dispute. The remedy is an appeal under section 127 of the Electricity Act, 2003; the writ petition is dismissed.

FACTUAL SUMMARY

The petitioner, Shlok Sangam, challenged the Executive Engineer's assessment of alleged electricity theft. In an earlier writ (Writ-C No. 6869) he had attacked a recovery certificate dated 16 December 2019 seeking instalment payment; the Court directed that request to be considered in accordance with law. The Executive Engineer, Vidyut Vitran Khand-III, Azamgarh, then permitted three instalments under clause 6.14 of the U.P. Electricity Supply Code, 2005. He returned alleging that, in computing those instalments, the total demand had been increased exorbitantly.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

appeal against theft-assessment computation

HOLDING

Where the live grievance is that the Executive Engineer, in computing dues payable in clause 6.14 instalments, has increased the total theft-assessment amount, the dispute is factual and an appeal under section 127 of the Electricity Act, 2003 lies to challenge that calculation; the writ petition is dismissed. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 The Court refused writ interference with the Executive Engineer's computation of theft dues and left the petitioner to a section 127 appeal. ¶ 1

alternative-remedy-s127-appeal-bars-writ-against-s126-assessment The matter being theft of electricity and the challenge being to the Executive Engineer's assessment computation, the writ was dismissed in favour of the statutory appeal. ¶ 1

theft-assessment-is-under-s126-appealable-s127 Counsel's written instructions established theft of electricity; the Court treated the assessment computation as appealable under section 127. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE EXECUTIVE ENGINEER EXORBITANTLY INCREASED THE TOTAL THEFT-ASSESSMENT DUES WHILE COMPUTING CLAUSE 6.14 INSTALMENTS

Left to a section 127 appeal as a factual dispute on calculation. ¶ 1